

HOUSE BILL 1829

By Mitchell

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 8; Title 39 and Title 40, relative to persons
convicted of felonies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-18-101(1), is amended by deleting the subdivision and substituting:

(1) Those who have been convicted of offering or giving a bribe, or any other offense declared infamous under § 40-20-112, unless restored to citizenship under title 40, chapter 29; provided, that a person is forever disqualified from holding public office if:

(A) The person has been convicted of an infamous crime if the offense was committed in the person's official capacity or involved the duties of the person's office; or

(B) The person's restoration of citizenship was pursuant to a presidential pardon;

SECTION 2. Tennessee Code Annotated, Section 8-35-124(a), is amended by deleting from subdivision (1) the language "arising out of the employee's or official's employment or official capacity, constituting malfeasance in office"; by deleting from subdivision (2) the language "arising out of that person's employment or official capacity, constituting malfeasance in office"; and by deleting from subdivision (3) the language "arising out of that person's official capacity, constituting malfeasance in office".

SECTION 3. Tennessee Code Annotated, Section 8-35-203(c), is amended by deleting the language "arising out of the employee's or official's employment or official capacity constituting malfeasance in office".

SECTION 4. Tennessee Code Annotated, Section 8-36-201(b)(2)(A), is amended by deleting the language "arising out of the employee's or official's employment or official capacity constituting malfeasance in office".

SECTION 5. Tennessee Code Annotated, Section 8-36-918(a), is amended by deleting the language "arising out of that employee's or official's employment or official capacity constituting malfeasance in office".

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it, and applies to felony convictions on or after July 1, 2026.